

Immunization Act, 2016

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Vaccine Act, 2072 (2015)

Certification and Publication Date

2072.10.12 (2015)

Amending Act

1. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018)
2075.11.19 (2019)

Act Number 13 of the Year 2072 (2015)

An Act Made to Provide for Matters Relating to Vaccination Services

Preamble: Whereas, it is expedient to make necessary provisions for reducing the mortality rate of infants, children, mothers and other persons by preventing, controlling, mitigating or eradicating diseases through vaccines, and for providing quality vaccination services by developing, expanding and strengthening vaccination services,

Be it enacted by the Legislature-Parliament in accordance with Sub-article (1) of Article 296 of the Constitution of Nepal. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Vaccine Act, 2072 (2015)."

(2) This Act shall commence on the ninety-first day after the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "License" means a license granted pursuant to Section 11 to operate vaccination services.

(b) "Investigation Committee" means the Adverse Event Investigation Committee pursuant to Section 19.

(c) "Fund" means the Vaccine Fund pursuant to Section 21.

(d) "Vaccine" means a vaccine administered for the prevention, control, mitigation or eradication of any disease.

(e) "Vaccination Card" means a vaccination card provided pursuant to Section 12.

(f) "Vaccination Program" means the national vaccination program conducted by the Ministry on a routine or campaign basis for the prevention, control, mitigation or eradication of any disease, and the term also includes the work of monitoring vaccine-preventable diseases.

(g) "Vaccinator" means a health worker or medical practitioner who administers vaccines, and the term also includes other persons designated by the Ministry for administering specific types of vaccines.

(h) "Vaccination Service" means the act of providing vaccines pursuant to this Act, and the term also includes

the work of managing, supplying, storing or distributing vaccine materials for the operation of vaccination services.

(i) "Medical Practitioner" means a person registered as a medical practitioner pursuant to prevailing law.

(j) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(k) "Ministry" means the amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018).Ministry of Health and Population.

(l) "Committee" means the National Vaccination Committee pursuant to Section 15.

(m) "Advisory Committee" means the National Vaccine Advisory Committee pursuant to Section 18.

(n) "Department" means the Department of Health Services.

(o) "Health Worker" means a person registered as a health worker pursuant to prevailing law. Chapter-2
Provisions Relating to Vaccination Services

3.

Right of Target Group Persons to Receive Vaccines: (1) Persons of the target group shall have the right to receive vaccines included in the vaccination program free of charge. Explanation: For the purpose of this Section, "target group" means persons of a class, community or area specified in the vaccination program as requiring vaccination for the prevention, control, mitigation or eradication of particular types of diseases. (2) The Ministry shall, specifying a certain date and time, make arrangements for administering vaccines pursuant to Sub-section (1) at any hospital, health institution, vaccination center, mobile vaccination clinic, or other location. (3) The Ministry may seek assistance from the relevant local level, police administration, and volunteers for the purpose of administering vaccines pursuant to this Section. 4. Compulsory Administration of Vaccines: (1) The Ministry may designate any vaccine as mandatory to be administered for the prevention, control, mitigation or eradication of diseases as prescribed. (2) It shall be the duty of the concerned person to receive the vaccine pursuant to Sub-section (1). 5. Duty of Guardian or Parent: It shall be the duty of the guardian, parent or person having care of an infant, child or any other person under their guardianship, parenthood or care to arrange for the administration of vaccines included in the vaccination program to such person. 6. Vaccine Not to Be Administered: Notwithstanding anything contained elsewhere in this Chapter, if it appears that a particular vaccine should not be administered to a person due to their health condition, the vaccinator shall not administer such vaccine to that person. 7. Information to Be Provided About Vaccines: (1) Before administering a vaccine, the vaccinator shall inform the person receiving the vaccine, orally or through other means, about the nature, benefits, and potential side effects of such vaccine. (2) If the person receiving the vaccine pursuant to Sub-section (1) is a minor, incapacitated, or mentally unsound, the vaccinator shall provide the information mentioned in that Sub-section to their guardian or parent. 8. Vaccine to Be According to Standards: Vaccines administered pursuant to this Act shall be in accordance with the prescribed standards. 9. Responsibility of Medical Practitioners and Health Workers: It shall be the responsibility of the concerned medical practitioner and health worker to be involved in the work of administering vaccines pursuant to this Act. 10. Obstruction of Vaccination Program Prohibited: No person shall create any kind of hindrance or obstruction in the work related to the operation of vaccination services. 11.

License Required: (1) A private, non-governmental, or community hospital or health institution wishing to operate vaccination services shall obtain a license from the prescribed body as prescribed. (2) A hospital or health institution that has obtained a license to operate vaccination services pursuant to Sub-section (1) shall

regularly submit reports of the vaccination services it operates to the prescribed body or health institution. 12. Record of Vaccination Services to Be Maintained: (1) The vaccinator shall maintain updated records of persons who have been vaccinated. (2) As proof of vaccination, the vaccinator shall provide a vaccination card in the prescribed format to the person being vaccinated. (3) The person receiving the vaccine, their guardian or parent, shall keep the vaccination card safe. Chapter-3 Provisions Relating to Vaccine Supply and Storage 13. Registered Vaccine to Be Supplied: (1) The institution supplying vaccines shall supply only vaccines registered with the Department of Drug Administration. (2) The vaccine supplied pursuant to Sub-section (1) must have been produced following good manufacturing practices and certified as having quality by the World Health Organization. (3) Notwithstanding anything contained in Sub-section (2), a vaccine that has not yet been certified as having quality by the World Health Organization may be supplied in the following circumstances:- (a) having been produced following good manufacturing practices, (b) having been used in the country of origin or other countries, (c) having been registered with the regulatory authority of the producing country, and (d) the matters mentioned in clauses (a), (b) and (c) have been certified by the Department of Drug Administration. 14. Transport, Storage and Distribution of Vaccines: The transport, storage, and distribution of vaccines, the equipment used for that purpose, and the temperature to be maintained up to the time of vaccine use shall be in accordance with the standards prescribed by the Ministry. Chapter-4 Provisions Relating to Various Committees 15.

Committee: (1) There shall be a National Vaccination Committee for the purpose of advising the Ministry on policy formulation related to the vaccination program. (2) The Committee shall be constituted as follows:- (a) Secretary of the Ministry ? Chairperson (b) Director General of the Department ? Member (c) Joint Secretary, Ministry of Finance ? Member amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018). (d) Joint Secretary, Ministry of Federal Affairs and General Administration ? Member amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018). (e) Joint Secretary, Ministry of Education, Science and Technology ? Member (f) Joint Secretary, Ministry of Women, Children and Senior Citizens ? Member (g) Two persons nominated by the Ministry from among pediatric specialists, public health specialists or health economists, including one woman ? Member (h) Director, Child Health Division, Department ? Member-Secretary (3) The term of office of nominated members pursuant to Sub-section (2) shall be four years. (4) Notwithstanding anything contained in Sub-section (3), if any nominated member does not fulfill their official responsibilities, the Ministry may remove them from membership at any time. (5) Before removing a member pursuant to Sub-section (4), the Ministry shall give them an opportunity to submit a defense. (6) The Child Health Division of the Department shall serve as the secretariat of the Committee. 16. Functions, Duties and Powers of the Committee: In addition to the functions, duties and powers mentioned elsewhere in this Act, the other functions, duties and powers of the Committee shall be as follows:- (a) to formulate policies related to the vaccination program and submit them to the Ministry, (b) to give directives to relevant bodies for the development, expansion and operation of the vaccination program, (c) to mobilize necessary resources to make the vaccination program sustainable and reliable, (d) to monitor and evaluate the vaccination program, (e) to coordinate with relevant bodies for the development and expansion of vaccines, (f) to form sub-committees as necessary for the effective operation of the vaccination program, (g) to give directives to the Department to implement suggestions provided by the Advisory Committee and the Investigation Committee on vaccine-related matters. 17.

Meetings and Decisions of the Committee: (1) The meeting of the Committee shall be held at least four times a year. (2) The meeting of the Committee shall be called by the Member-Secretary under the direction of the Chairperson of the Committee. (3) The Member-Secretary shall provide notice, including the agenda for

discussion, to all members of the Committee at least twenty-four hours before the meeting is held. (4) If more than fifty percent of the total number of members of the Committee are present, the meeting shall be deemed to have a quorum. (5) The meeting of the Committee shall be presided over by the Chairperson of the Committee, and in their absence, by a member chosen by the members present at the meeting from among themselves. (6) The opinion of the majority shall prevail in the meeting of the Committee, and in case of a tie, the person presiding over the meeting shall cast the deciding vote. (7) The Committee may invite any person related to the vaccination program to attend its meeting if it deems necessary. (8) Other procedures relating to meetings of the Committee shall be as determined by the Committee itself. 18. Advisory Committee: (1) There shall be a National Vaccine Advisory Committee to advise the Committee regarding the development, expansion and operation of the vaccination program, and regarding the immediate operation of a vaccination program during natural disasters or epidemics. (2) The Advisory Committee shall be constituted as follows:- (a) Person nominated by the Ministry from among public health specialist medical practitioners or senior pediatric specialists ? Chairperson (b) Director, Child Health Division, Department ? Member (c) President of the Nepal Pediatric Society, or a representative of that Society designated by them ? Member (d) Three persons nominated by the Ministry from among epidemiologists, public health experts, health economists or senior pediatric specialists ? Member (e) Chief, Vaccine Section, Department ? Member-Secretary (3) The term of office of the Chairperson and nominated members of the Advisory Committee shall be four years. (4) Notwithstanding anything contained in Sub-section (3), if the Chairperson or a nominated member of the Advisory Committee does not fulfill their official responsibilities, the Ministry may remove them at any time. (5) Before removing the Chairperson or a member of the Advisory Committee pursuant to Sub-section (4), the Ministry shall give them an opportunity to submit a defense. (6) The Child Health Division of the Department shall serve as the secretariat of the Advisory Committee. 19.

Investigation Committee: (1) There shall be an Adverse Event Investigation Committee to immediately investigate adverse events that may occur after vaccination and submit a report thereof to the Committee. (2) The Investigation Committee shall be constituted as follows:- (a) Person nominated by the Ministry from among senior pediatric specialists ? Chairperson (b) Representative, Department of Drug Administration ? Member (c) Representative, Nepal Pediatric Society ? Member (d) One person from among senior pediatric specialists ? Member (e) One person from among senior public health experts ? Member (f) One person from among senior pathologists ? Member (g) Chief, Vaccine Section, Department ? Member-Secretary (3) The nomination of members pursuant to clauses (d), (e) and (f) of Sub-section (2) shall be made by the Ministry. (4) The term of office of the Chairperson and nominated members of the Investigation Committee shall be four years. (5) Notwithstanding anything contained in Sub-section (4), if the Chairperson or a nominated member of the Investigation Committee does not fulfill their official responsibilities, the Ministry may remove them from such position at any time. (6) Before removing the Chairperson or any member pursuant to Sub-section (5), the Ministry shall give them an opportunity to submit a defense. (7) The Child Health Division of the Department shall serve as the secretariat of the Investigation Committee. 20. Directive May Be Given to Implement Suggestions: If the suggestion of the Advisory Committee or the Investigation Committee appears to be of a nature requiring immediate implementation, and if the meeting of the Committee cannot be held immediately, the Chairperson of the Committee may give a directive to the Department to implement such suggestion, subject to ratification by the next meeting of the Committee. Chapter-5 Fund and Audit 21. Fund: (1) There shall be a fund called the Vaccine Fund for the purpose of developing the vaccination program, among other works. (2) The Fund shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount received from domestic persons, financial, cooperative or other associations or institutions, (c) Amount received from foreign persons, governments or international

associations or institutions, (d) Amount received from other sources. (3) The Committee shall obtain the approval of the Ministry of Finance before receiving the amount mentioned in clause (c) of Sub-section (2). (4) The Committee shall open an account in a licensed "A" class commercial bank pursuant to prevailing law and deposit amounts received in the Fund. 22.

Utilization of the Fund: (1) The Committee may expend the Fund amount for the following works:- (a) to purchase vaccines and operate the vaccination program, (b) to immediately purchase vaccines, if necessary due to natural disasters or epidemics, and operate the vaccination program, (c) to conduct studies and research on matters related to the development or expansion of the vaccination program, (d) to invest in the production of vaccines used in the vaccination program within the country in partnership with the private sector, if it appears appropriate from the perspective of cost-effectiveness, (e) to carry out administrative work including conducting meetings of the Committee. (2) When expending the Fund amount for the works mentioned in clauses (a), (b) and (d) of Sub-section (1), the Committee shall obtain the approval of the Ministry. 23. Fund Amount Not to Be Expended on Other Works: The Committee shall not expend the Fund amount on works other than those mentioned in Sub-section (1) of Section 22. 24. Arrangement of Funds: (1) The Government of Nepal shall arrange for the funds necessary for the sustainable management of the vaccination program. (2) When expending the Fund amount for works other than those mentioned in clause (b) of Sub-section (1) of Section 22, the Committee shall make expenditures ensuring that at least ten crore rupees remains in balance in the Fund. (3) The Government of Nepal shall reimburse the Fund as soon as possible for the amount expended for the work pursuant to clause (b) of Sub-section (1) of Section 22. 25. Accounts and Audit of the Fund: (1) The accounts of income and expenditure of the Fund shall be maintained in accordance with the accounting system adopted by the Government of Nepal. (2) The internal audit of the Fund shall be conducted by the Office of the Comptroller and Auditor General. (3) The final audit of the Fund shall be conducted by the Auditor General. Chapter-6 Penalties, Compensation and Appeals 26.

Penalties: (1) If any person operates vaccination services without obtaining a license, the Committee shall close down such vaccination services and impose a fine of Rupees three hundred thousand to Rupees five hundred thousand on the person operating such vaccination services. (2) If any person supplies an unregistered vaccine contrary to Section 13, the Committee shall destroy such vaccine and impose a fine of Rupees twenty-five thousand to Rupees one hundred thousand on the person supplying such vaccine. (3) If any person distributes vaccines contrary to the prescribed standards pursuant to Section 14, the Committee shall destroy such vaccine and impose a fine of Rupees fifty thousand on the person distributing the vaccine. (4) If any person commits any other act contrary to this Act or the rules made under this Act, besides those mentioned in Sub-section (1), (2) or (3), the Committee shall impose a fine of Rupees ten thousand to Rupees twenty-five thousand on such person. (5) If an act punishable pursuant to Sub-section (4) is committed by an employee of a government or public institution, the Committee may also send a letter to the concerned body to initiate departmental action against such employee. 27. Complaint May Be Filed: (1) A person who learns of any act punishable pursuant to Section 26 being committed by another person may file a complaint with the Committee within thirty-five days from the date of commission of such act. (2) Notwithstanding anything contained in Sub-section (1), even if no complaint is filed with the Committee regarding acts or actions contrary to this Act, if the Committee receives information from any source about the commission of such act, the Committee may investigate the matter and impose a penalty pursuant to Section 26. 28. Provision Relating to Treatment and Compensation: (1) If the Investigation Committee determines that a serious adverse effect has occurred on the health of a person solely due to the administration of a vaccine, the body or institution from which such vaccine was administered shall provide treatment and also pay compensation to such person. (2) If the Investigation Committee determines that,

solely due to the administration of a vaccine, a person has suffered a serious physical injury resulting in the loss of a limb or has died, the Committee shall arrange for compensation to be provided from the body or institution that administered such vaccine to the injured person themselves, or in case of death, to their immediate heir. (3) The basis for providing compensation pursuant to Sub-sections (1) and (2) shall be as prescribed. 29.

Expert Committee May Be Formed: The Committee may form an Expert Committee under the convenorship of a member of the Committee to submit opinions and recommendations regarding imposing penalties pursuant to Section 26 or determining compensation pursuant to Section 28. 30. **Appeal:** A person dissatisfied with a decision made or order given by the Committee pursuant to Section 26 or 28 may appeal to the High Court within thirty-five days from the date of such decision or order. Provided that, until the High Court assumes its jurisdiction, there shall be no bar to appealing to the Appellate Court. 31. **No Bar to Prosecution Under Prevailing Law:** If any act or action punishable under this Act is also punishable under other prevailing law, this Act shall not be deemed to create any bar to prosecuting and taking action under such law. Chapter-7 Miscellaneous 32. **Incentive or Reward May Be Provided:** The Ministry may provide incentives or rewards to individuals who make outstanding contributions in the field of vaccination services. 33. **Vaccination Card May Be Requested:** (1) While enrolling children, a school may request the vaccination card of the child from their guardian or parent. (2) Notwithstanding anything contained in Sub-section (1), no child shall be denied admission to a school solely on the ground of failing to present a vaccination card. (3) The school shall maintain records of children who have not received vaccines included in the vaccination program and shall send a report thereof to the local government health institution. 34. **Goodwill Ambassador May Be Designated:** The Government of Nepal may designate a nationally renowned person as a Goodwill Ambassador to promote the vaccination program. 35. **Awareness Programs to Be Conducted:** The Committee shall regularly conduct awareness programs regarding the benefits of vaccination and the negative health effects that may occur if vaccines are not received on time. 36. **Meeting Allowance:** The Chairperson, members, and invited members of the various committees and sub-committees formed under this Act shall receive a meeting allowance as determined by the Ministry of Finance for participating in meetings. 37. **Cooperation to Be Provided:** It shall be the duty of the concerned body or person to provide necessary cooperation in relation to the operation of vaccination services. 38. **Delegation of Powers:** (1) The Ministry may, as necessary, delegate some of the powers vested in it pursuant to this Act to the Committee or any body. (2) The Committee may, as necessary, delegate some of the powers vested in it pursuant to this Act to the Chairperson, a member or any authorized employee of the Committee. 39.

Annual Report to Be Submitted: (1) The Committee shall submit an annual report of its work and activities during the year to the Ministry within three months of the end of the fiscal year. (2) The Committee may make the report pursuant to Sub-section (1) public. 40. **Directive May Be Given:** (1) The Ministry may give necessary directives to the Committee regarding its work and activities. (2) It shall be the duty of the Committee to comply with the directives given by the Ministry pursuant to Sub-section (1). 41. **Directive May Be Issued:** The Committee may, subject to this Act and the rules made under this Act, issue necessary directives and implement them. 42. **Power to Make Rules:** (1) The Government of Nepal may make necessary rules for the implementation of this Act. (2) Without prejudice to the generality of the power conferred by Sub-section (1), the Government of Nepal may in particular make rules on the following matters:- (a) Standards of vaccines, (b) Procedures for issuing licenses, fees for license and renewal, duration of license, cancellation, and conditions to be fulfilled by the licensee, (c) Monitoring of vaccination services, (d) Reports to be submitted to health institutions, (e) Records of vaccination services, (f) Vaccination Card, (g) Other functions, duties and powers of the Committee, (h) Meetings of the Advisory

Committee and the Investigation Committee, (i) Operation of Fund accounts, (j) Utilization of Fund amount, (k) Compensation to be provided to persons receiving vaccines, (l) Other necessary matters relating to vaccines. 43. Repeal and Saving: (1) The National Vaccine Fund (Operation) Regulations, 2070 (2013) is hereby repealed. (2) Acts and actions performed pursuant to the National Vaccine Fund (Operation) Regulations, 2070 (2013) shall be deemed to have been performed under this Act.